REPORTABLE (8)

(1) REUBEN ZULU (2) GODFREY GURIRA (3) SHOORAYI NYAMANGODO (4) JOSEPH CHINYANGARE (5) DIGMORE KNOWLEDGE NDIYA (6) JOSEPH CHINGUWA

v

(1) THE PRESIDENT OF THE REPUBLIC OF ZIMBABWE N.O.

(2) THE ATTORNEY GENERAL OF ZIMBABWE

CONSTITUTIONAL COURT OF ZIMBABWE
GWAUNZA CJ, GARWE DCJ, MAKARAU JCC, GOWORA JCC, HLATSHWAYO JCC, PATEL JCC & GUVAVA AJCC
HARARE, 20 MAY & 17 JUNE 2026

L. Madhuku with *L. Uriri* and *T. Zhuwarara*

S. M. Hashiti with *E. Mubaiwa*, *F. Chimbaru*, *V. Munyoro* and *M. Chimombe*

PATEL JCC:

This is an application in terms of s 167(2)(d) of the Constitution of Zimbabwe, 2013, as read with r 32 of the Constitutional Court Rules, 2025. The application is made on the basis that the first respondent has failed to fulfil his constitutional obligations as set out in ss 90(1), 90(2)(b) and 196(2) of the Constitution.

The Background

The applicants are male adults who are citizens of Zimbabwe. The first respondent is the President of the Republic of Zimbabwe, who is cited on the basis that his conduct, actions, omissions and decisions are inconsistent with and in breach of his constitutional obligations.

The second respondent is the Attorney-General of Zimbabwe, cited as the functionary responsible for representing the government in constitutional proceedings.

On 10 February 2026, Cabinet approved the draft Constitution of Zimbabwe Amendment (No. 3) Bill, 2026 ("the Bill"). The Bill was formally gazetted on 16 February 2026, thereby commencing the constitutional process required under s 328 of the Constitution for the amendment of constitutional provisions. The proposed amendments contained in the Bill are fairly extensive. Among other matters, the Bill seeks to replace the direct election of the President by universal suffrage with election by a joint sitting of Parliament, extend the terms of office of the President, Parliament and local authorities from five years to seven years, alter the composition of the Senate, and restructure certain constitutional commissions and electoral institutions.

The Application

The applicants submit that this application is premised on the first respondent's alleged failure to comply with his constitutional obligations under ss 90(1), 90(2)(b) and 196(2) of the Constitution. They contend that the President has acted in breach of his constitutional obligations by initiating and advancing a constitutional amendment process that is fundamentally inconsistent with the duties of his office. In this regard, the applicants aver that the President improperly directed and approved a proposed Bill through Cabinet, even though its purpose and effect are constitutionally impermissible. They contend that the President is not entitled to propose amendments to core constitutional provisions because in his view the existing Constitution is inadequate or inconvenient, particularly where such amendments would undermine foundational principles.

The applicants specifically challenge the proposed amendment relating to the election of the President. They contend that the Bill seeks to alter the method of presidential election in

a manner that undermines the established principle of universal suffrage entrenched in s 3(2)(a) and (b)(i) of the Constitution and the democratic value of direct election. This, they argue, violates the Constitution's foundational values, including the concept of "one person, one vote", and disregards the obligation to respect the ideals of the liberation struggle.

Furthermore, the applicants maintain that the proposed amendment is designed, both in form and effect, to extend the President's tenure beyond the constitutional term limits. They argue that this contravenes s 328(7) of the Constitution, which prohibits an incumbent President from benefiting from amendments to term limits. They state that the alleged intention to avoid a referendum, despite constitutional safeguards requiring one for such changes, is an additional violation that undermines the democratic framework. They contend that this conduct is inconsistent with the obligations imposed on public officers under s 196(2) of the Constitution.

The applicants also maintain that the proposed amendments violate political rights protected under s 67(1)(a) of the Constitution, by postponing regular elections and undermining citizens' rights to participate in free, fair, and periodic elections. They argue that the amendments weaken constitutional supremacy, popular sovereignty, accountability, and democratic governance protected under s 3 of the Constitution.

The applicants emphasise that their challenge is not politically motivated, but arises from concerns that the President has acted inconsistently with his constitutional obligations and oath of office. They argue that, having sworn to uphold and defend the Constitution, the President has acted contrary to that duty by facilitating constitutional amendments allegedly intended to preserve his incumbency and diminish democratic participation.

The second to fifth applicants have all filed supporting affidavits, aligning themselves with the averments contained in the founding affidavit.

The Opposition

The respondents oppose the application principally on the following points *in limine*: that the matter is improperly before the Court as the Court has no jurisdiction to determine it, that the matter is not yet ripe for adjudication and that the applicants seek relief that the Court is not competent to grant in its present procedural posture.

Regarding the Court's jurisdiction to deal with the matter, the respondents submit that the application does not concern the enforcement of constitutional obligations under s 167(2)(d), as the duties relied upon are not directly enforceable under that provision. They contend that the real issue is the constitutionality of the proposed Constitutional Amendment Bill, since the Court would first have to determine the validity of the Bill before considering any alleged failure by the President to fulfil his constitutional obligations. They argue that the application is, in substance, an impermissible constitutional challenge to proposed legislation brought outside the constitutionally prescribed referral procedures. They submit that the joinder of the Attorney-General reinforces the conclusion that the matter is directed at the validity of the Bill rather than at any constitutional default by the President.

The respondents further argue that the application is premature because the Bill is still undergoing the legislative and public consultation process. They submit that the applicants should instead raise their concerns before Parliament and that any constitutional challenge can only arise once the Bill has been enacted. The respondents also contend that any intervention at this stage would be speculative and inconsistent with the doctrine of separation of powers. They argue that the relief sought by the applicants is incompetent as it is based on an unfounded cause of action. It effectively invites this Court to interfere with an ongoing legislative process and to pronounce upon the constitutionality of draft legislation that has not yet been enacted.

Concerning the merits, the respondents deny that the first respondent failed to fulfil any constitutional obligations by chairing the Cabinet meeting which deliberated the Bill. They contend that, in doing so, the first respondent acted strictly in accordance with his constitutional mandate under s 105(2) of the Constitution, which requires the President to preside over Cabinet meetings. They submit that the first respondent's duties under ss 90(1) and 90(2)(b) must be understood in light of his broader executive functions under ss 105 and 110 of the Constitution.

The respondents further argue that the President is not constitutionally required to determine the constitutionality of proposed legislation, as that function falls exclusively within the jurisdiction of the courts. They deny that the first respondent initiated the Bill, maintaining instead that he merely chaired Cabinet in the ordinary execution of his constitutional duties. According to the respondents, the Constitution itself expressly permits constitutional amendments and there is therefore nothing improper or unlawful in following the procedures laid down for that purpose. They also reject the applicants' contention that the Bill affects presidential term limits in a manner prohibited by s 328(7), arguing that both the Bill and the constitutional provisions relied upon by the applicants have been misconstrued.

Additionally, the respondents deny that s 196(2) creates a specific constitutional obligation enforceable against the first respondent under s 167(2)(d). They contend that the provision applies generally to all public officers and does not impose a special enforceable obligation upon the President. Even if such an obligation exists, they deny that the first respondent acted in circumstances giving rise to any conflict between personal interests and public duties. They assert that the Bill is fully consistent with constitutional norms and does not undermine the Constitution or democratic governance.

The respondents also submit that the first respondent was not obliged to prevent Cabinet members or political party members from debating constitutional issues or exercising freedom of expression in relation to the proposed amendment. They emphasise that there is nothing unconstitutional about amending the Constitution and that the applicants' assertion that the Bill violates s 328(7) is based on a misunderstanding of the law relating to term limits and extensions of office. In their view, the Court cannot conclude that the first respondent failed to fulfil constitutional obligations merely because the applicants subjectively believe that the proposed amendment is unconstitutional.

Finally, the respondents submit that all legislative and constitutional procedures were lawfully followed. They argue that any constitutional concerns regarding proposed legislation may only arise under s 131 of the Constitution once a Bill has been passed by Parliament and referred to the President. They also deny allegations of disenfranchisement or violations of political rights, arguing that constitutional amendments in that regard are entirely permissible under the Constitution.

The Answering Affidavit

In reply, the applicants raise a point *in limine* that there is effectively no opposition before the Court on behalf of the first respondent because the President himself did not depose to an opposing affidavit. They argue that proceedings brought under s 167(2)(d) of the Constitution concern the alleged failure by the President personally to fulfil constitutional obligations and, accordingly, require a direct response from him. In their submission, such constitutional accountability cannot be delegated to the Attorney-General or any other State official.

The applicants further submit that the mere assertion by the second respondent that she also acts on behalf of the first respondent does not convert her affidavit into that of the

President. They point out that no evidence of authorisation by the first respondent has been placed before the Court and contend that neither s 167(2)(d) of the Constitution nor r 32 of the Rules makes provision for the President's personal response to be substituted by that of a State official. On this basis, the applicants argue that the President's failure to personally oppose the application should be understood as an indication that he does not dispute the allegations made against him or the relief sought by the applicants.

On the merits, the applicants contend that the first respondent cannot avoid constitutional accountability merely by relying on his position as Chairperson of Cabinet. They argue that, although the President exercises executive authority under ss 105 and 110 of the Constitution, those powers remain subject to the duties imposed upon him by ss 90 and 196, which require him at all times to uphold, defend, and respect the Constitution. In their submission, the fact that the impugned conduct occurred within Cabinet proceedings does not place it beyond constitutional scrutiny where the conduct itself is alleged to undermine constitutional principles.

The applicants further maintain that their case does not seek to impose upon the President the role of a court determining constitutional validity. Rather, the President's oath of office obliges him to refrain from initiating, supporting, or facilitating measures that are plainly inconsistent with the Constitution. They contend that the first respondent was not merely a passive presiding officer during Cabinet deliberations, but an active participant in a political and legislative process allegedly intended to secure personal political advantage through constitutional amendment.

The applicants contend that the respondents are incorrect in asserting that the Bill does not implicate the presidential term-limit protections contained in s 328(7) of the Constitution. In their view, the practical effect of the proposed amendments is to extend the tenure of the

incumbent President beyond the constitutional framework adopted by the electorate in 2013. They argue that constitutional safeguards on presidential tenure cannot be circumvented indirectly through amendments affecting the timing or structure of elections while retaining the incumbent in office. Accordingly, the applicants submit that the Court must consider not merely the form of the proposed amendments but also their substantive effect on constitutional democracy and the prohibition against self-extension of executive authority.

The applicants also reject the contention that s 196(2) is not enforceable against the President. They submit that the provision embodies a constitutional standard of conduct applicable to all public officers, including the Head of State. They argue that the President cannot participate in processes from which he stands to benefit personally without creating a constitutionally impermissible conflict between personal interests and public duties. In their view, the President's involvement in Cabinet approval of the Bill, coupled with public statements regarding the extension of tenure, gives rise to precisely the type of conflict contemplated by s 196(2).

In addition, the applicants further maintain that the constitutionality of proposed legislation may, in appropriate circumstances, be challenged before enactment where the legislative process itself allegedly violates constitutional provisions or threatens constitutional supremacy. They argue that the Court is therefore entitled to intervene at this stage to prevent what they describe as an unconstitutional alteration of the democratic order before the impugned Bill becomes law.

Lastly, the applicants deny that their challenge is based on political disagreement or subjective dissatisfaction with constitutional reform. Rather, they contend that the application raises substantive constitutional concerns relating to democratic governance, universal suffrage, periodic elections and the protection of entrenched constitutional principles. In their

submission, the proposed amendments, viewed cumulatively, threaten to weaken constitutional accountability, diminish political participation, and undermine the sovereign will of the people as expressed in the 2013 Constitution.

The Relief Sought

Based on the foregoing averments, the applicants seek the following declaratory and consequential relief:

1. That the application is granted.
2. It is declared that in presiding over and/or chairing Cabinet deliberations and processes pertaining to Constitutional Amendment Bill No. 3 and being party to the approval by Cabinet of the aforesaid Constitutional Amendment Bill No. 3, the 1st Respondent failed to fulfil his constitutional obligations set out in sections 90(1), 90(2)(b) and 196(2) of the Constitution of Zimbabwe, 2013.
3. As a consequence of the declaration in paragraph 2 above, it is declared that all the deliberations and processes of Cabinet pertaining to Constitutional Amendment Bill No. 3 and the approval by Cabinet of the aforesaid Constitutional Amendment Bill No. 3 are null and void and of no force or effect.
4. As a just and equitable order under section 175(6) of the Constitution, it is declared that any constitutional amendment, transitional arrangement, or continuation-in-office mechanism that has the purpose or effect of extending the tenure of, or conferring incumbency benefit upon, a person who held the office of President before the amendment, is invalid and of no force or effect in respect of that incumbent by operation of s 328(7) of the Constitution.
5. As a further and equitable order under section 175(6)(b) of the Constitution, the 1st Respondent is interdicted from signing, assenting to, promulgating, advancing, or otherwise giving executive effect to Constitutional Amendment Bill No. 3, or any substantially similar instrument, in any matter inconsistent with this order and the Constitution, including ss 67 and 328.
6. There shall be no order as to costs.

Submissions for the Applicants

Mr *Madhuku*, for the applicants, submits *in limine*, that the first respondent was not properly before the Court as the opposing affidavit was only deposed to by the second respondent. He submits that because of the special nature of the jurisdiction of the Court in an

application under s 167(2)(d) of the Constitution, the first respondent needed to respond on his own to the allegations made against him. He argues that nothing had been placed before the Court to show that the first respondent had seen the application and authorised the second respondent to respond on his behalf. He thus urges the Court to find that the first respondent was not properly before it.

On the merits, Mr *Madhuku* submits that the first respondent failed to fulfil his obligations set out in ss 90(1) and 90(2)(b) of the Constitution by chairing, facilitating and approving Cabinet initiatives bringing about the Bill, in circumstances where that Bill is making provision for that which is prohibited by the Constitution. The first respondent failed to fulfil the obligation under s 196(2) by facilitating a Bill from which he stands to personally benefit, thus placing himself in a conflict-of-interest situation, contrary to s 328(7) of the Constitution. This is so because the proposed amendments of ss 95(2) and 143 clearly constitute amendments to term limit provisions. He relies on the case of *Mupungu* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ 7-21, which, he submits, clearly settled that question. He further argues that Cabinet itself does not have the authority to initiate constitutional Bills. Thus, in presiding over Cabinet and allowing Cabinet to do that which it cannot do under the Constitution, the first respondent did not fulfil his duties.

Concerning the respondents' preliminary point that the Court's jurisdiction had not been triggered, counsel submits that the applicants had identified the first respondent as the functionary whose conduct was being impugned. They had also clearly set out the obligations that were not fulfilled, that is, ss 90(1), 90(2)(b) and 196(2), and the extent to which those obligations had not been fulfilled. Thus, the Court's jurisdiction had clearly been triggered.

In response to the point that the matter was not ripe for determination, counsel submits that the respondents had misunderstood the matter before the Court. What is before the Court

was the allegation of a failure to fulfil clearly identified obligations arising from completed acts of the first respondent. He argues that the cause of action was established the moment that the first respondent finished his Cabinet proceedings, as he had already failed to comply with the Constitution. The Court was not being asked to deal with the legislative process. Rather, it was being asked to deal with the completed acts of the first respondent in his capacity as the person in whom the responsibility to uphold the Constitution resides. He thus contends that the matter is ripe for adjudication.

In relation to the obligation under s 90(2)(b), counsel submits that the Bill that the first respondent presided over takes away from citizens the right to vote directly for the President and seeks to introduce a system in which Parliament elects the President. In his view, this is contrary to the values of the liberation struggle which established the one man one vote rule. Thus, by presiding over and approving the Bill, the first respondent failed to uphold the Constitution as he participated in initiatives that take away that fundamental values of the liberation struggle.

In response to questions from the Court as to whether, in determining if the first respondent had failed to fulfil his obligations, it would have to determine whether clauses 4(b) and 9(b) of the Bill are inconsistent with the Constitution, Mr *Madhuku* responds in the affirmative. As regards the first respondent's mandate to chair Cabinet meetings in terms of s 105(2) of the Constitution, Mr *Madhuku* submits that the Cabinet must never be placed in a situation where its members are conflicted. He takes the view that Cabinet must only engage in constitutionally compliant business and not matters that personally benefit its members.

Submissions for the Respondents

Counsel for the respondents, Mr *Hashiti*, submits that the applicants' preliminary point that the first respondent was not properly before the Court has no merit. This is because the

propriety of the second respondent deposing to an affidavit on behalf of the first respondent was settled in the case of *Ndewere* v *The President of Zimbabwe* CCZ 3-25. The applicants themselves had conceded this in their founding affidavit by stating that the second respondent was cited as the first respondent's legal adviser. He argues that this is also the accepted common law position and that, in terms of s 114 of the Constitution and s 22 of the Constitutional Court Act, the second respondent could competently depose to an affidavit on behalf of the first respondent. He thus prays that the point be dismissed for lack of merit.

On the merits, Mr. *Hashiti* submits that the applicants' argument that the first respondent ought to have known that the Bill was unconstitutional and refused to chair the meeting was wrong. This is because s 167(2) (a) of the Constitution is clear that it is only this Court which makes a determination on the constitutionality of a Bill. Counsel also refers the Court to the Fifth Schedule of the Constitution under Part 3, at paragraph 8.

Regarding the view that the first respondent presided over the processing of a Bill that stands to benefit him, counsel submits that no evidence had been placed before the Court to prove this. He argues that the first respondent was not the initiator of the Bill, a fact which was conceded by the applicants. Contrary to the applicants' claims, they had attached to the application annexures showing the first respondent stating that he has no intentions of benefitting from the amendments. Counsel thus argues that the applicants had pleaded their case in a vacuum and failed to show that their cause of action was complete.

Mr *Hashiti* further submits that, in terms of s 105 of the Constitution, the first respondent has the mandate to chair Cabinet except in instances where he is absent. As the first respondent was present in the country during the deliberation of the Bill *in casu*, he had to chair the meeting in question. Hence his conduct was not unconstitutional. Additionally, the applicants have not stated the legal provision in terms of which the first respondent could recuse

himself from the meeting and, if the first respondent had recused himself, who was going to chair the meeting. The respondents thus relied on the *Mupungu* case, *supra*, to contend that the first respondent could not have recused himself.

Regarding the allegation that the first respondent had failed to uphold the values of the liberation struggle, Mr *Hashiti* submits that these values are not specifically stated in the current 2013 Constitution. Furthermore, the "one man one vote" principle does not necessarily mean the direct election of the President by the populace.

In response to the applicants' argument that Cabinet does not initiate constitutional bills, counsel submits that under s 110 of the Constitution it is the Cabinet that initiates national legislation and that the qualification alluded to by the applicants does not exist. Additionally, it is a fallacy that a Bill can be initiated and not benefit anyone, including members of Cabinet.

In response to the observation by the Court that s 90 speaks of the President's duties whilst s 167(2)(d) speaks of obligations and its query as to whether the words "duty" and "obligation" can be used interchangeably, counsel replies in the negative. The two words are different, as the latter is justiciable and the former only dictates duties that are general. Thus, the duties under s 90 are generalised guidelines that do not create justiciable obligations.

Applicants' Reply

In response, Mr *Madhuku*, denies that the applicants had accepted the second respondent's affidavit as the first respondent's affidavit. He insists that they were persisting with the preliminary point in that regard.

On the merits, counsel submits that the obligations referred to in s 90 are justiciable. They are not duties, as that is only what the heading says, while the section itself clearly refers to obligations. He relies on s 335 of the Constitution to argue that the heading of the section is

irrelevant. However, he admits that some obligations may not readily fall under s 167(2)(d) and that each case must be dealt with on its own facts. In response to the Court's suggestion that the obligations referred to must be specific, counsel submits that specificity relates to the functionary upon whom the obligation falls and not to the obligation itself.

Mr *Madhuku* further reiterates that the first respondent should not have chaired the Cabinet meeting in which the Bill was discussed and approved. The President must form a view as to whether what he is doing is constitutional. He relies on ss 131(6) and 113(8)(b) of the Constitution, whereunder the President may refer a Bill to Parliament with reservations regarding its constitutionality and to this Court for a determination of its constitutionality. Although these provisions relate to the President assenting to a Bill, they still require that the President has to form a view regarding the constitutionality of the Bill at the time when it is brought to Cabinet.

Validity of Opposition by First Respondent.

Although the parties have raised several preliminary points, only one is material to the determination of this matter, to wit, whether the first respondent has entered a valid opposition to the application. Accordingly, I will not address the remaining preliminary objections and will confine myself to that issue and thereafter attend to the merits of the case.

The applicants have objected to the opposing affidavit filed jointly on behalf of the first and second respondents, but deposed to only by the second respondent. The nub of their objection is that the first respondent has not properly opposed the application because he did not personally file an opposing affidavit. They argue that proceedings under s 167(2)(d) concern personal constitutional obligations which cannot be delegated to the Attorney-General or any other State official. In their view, only the office-bearer against whom a breach is alleged

may properly answer such proceedings, while any additional respondents may respond only to allegations made directly against them.

The respondents' stance is that this question has been definitively settled by the Court and that the second respondent, as Attorney-General and legal adviser to the President, was competent to oppose the application on the first respondent's behalf. This is so in light of s 114 of the Constitution and s 22 of the Constitutional Court Act. The latter provision explicitly entitles the Attorney-General to be heard on constitutional questions concerning the President's conduct.

In my view, while constitutional obligations imposed upon the President may indeed be personal and non-delegable in substance, it does not necessarily follow that the President must personally depose to every affidavit filed in proceedings brought under s 167(2)(d). Neither the Constitution nor the Constitutional Court Rules expressly require the President to personally swear an opposing affidavit.

In motion proceedings, it is generally accepted that an affidavit may competently be deposed to by a person authorised to speak on behalf of a litigant or by one who possesses knowledge relating to the issues in dispute – see *Ndewere* v *The President of Zimbabwe* CCZ 3-25, at paras. 20-24, where an affidavit deposed to by the Minister of Justice, Legal and Parliamentary Affairs, on behalf of the President, was held to be valid. What is material in this respect is whether the affidavit is properly before the Court and whether the deponent is competent to depose to it.

In the present matter, the second respondent expressly stated that she was deposing to the affidavit on the first respondent's instructions and on his behalf. In the absence of evidence disputing that authority, the Court would ordinarily be entitled to accept that representation. In any event, s 22 of the Constitutional Court Act [*Chapter 7:22*] explicitly recognises the

Attorney-General's institutional role in proceedings concerning alleged unconstitutional conduct by the President. Section 22 of the Act provides as follows:

> "The Attorney-General shall be entitled to be heard by the Court on the question of whether an Act of Parliament or any conduct of the President or Parliament is in contravention of the Constitution, whether or not the Attorney-General was a party to the proceedings in which any order of constitutional invalidity affecting such Act or conduct was made by another court."

Although this provision does not necessarily make the Attorney-General a substantive respondent, it reinforces the proposition that the Attorney-General may competently participate in constitutional proceedings and be heard on behalf of the President. Therefore, the second respondent's participation as a deponent to the opposing affidavit on behalf of the first respondent cannot, for that reason alone, be impugned. The inevitable conclusion is that the matter cannot be regarded as unopposed merely because the first respondent did not personally depose to his affidavit. Consequently, the applicants' preliminary point in this regard lacks merit and is accordingly dismissed.

I now turn to the merits of the application.

Alleged Failure to Fulfil Constitutional Obligations under ss 90(1), 90(2)(b) and 196(2)

The requirements that must be met by an applicant seeking relief under s 167(2)(d) of the Constitution are succinctly spelt out in *Chirambwe* v *President of the Republic of Zimbabwe & Ors* CCZ 4-21, at para. 86, as follows:

> "In J*oyce Teurai Ropa Mujuru v The President of Zimbabwe & Ors* CCZ 8/18 this Court cited with approval remarks by the South African courts that where one alleges a failure to fulfil a constitutional obligation, one must identify the functionary and the duty specifically imposed by the Constitution on that functionary and the impugned conduct that is in issue."

Similarly, in *Economic Freedom Fighters* v *Speaker of the National Assembly and Others; Democratic Alliance* v *Speaker of the National Assembly and Others* 2016 ZACC 11, the South African Constitutional Court stated that:

> "An alleged breach of a constitutional obligation must relate to an obligation that is specifically imposed on the President or Parliament. An obligation shared with other organs of State will always fail the section 167(4)(e) test."

In the present case, the applicants have clearly identified the first respondent, the President, as the functionary whose conduct is being impugned. To that extent, the first requirement has clearly been satisfied.

The real difficulty, however, lies in the second requirement, *viz.* whether the applicants have identified a justiciable constitutional obligation **specifically** imposed upon the first respondent under ss 90(1), 90(2)(b) and 196(2), and whether the conduct complained of constitutes a failure to fulfil such obligation.

In *Hove* v *Parliament* CCZ 12-23, at p. 8, this Court reiterated that an application under s 167(2)(d) must plead, with reasonable precision, both the constitutional obligation alleged to have been breached and the conduct constituting that breach. It was held that:

> "Rule 27 of the Constitutional Court Rules 2016 (the Rules) sets out what must be pleaded in an application under s 167(2)(d) of the Constitution. The founding affidavit must explicate two elements: the constitutional obligation in question that is imposed on Parliament or the President; and that which Parliament or the President has failed to do in respect of the constitutional obligation. This Court has also prescribed that these two aspects must be set out with reasonable precision. The litigant must plead his or her case with sufficient clarity so that both the Court and the other parties know what is being alleged. See *Mliswa* v *Parliament of the Republic of Zimbabwe* CCZ 02-21; *Mushoriwa & Ors* v *Parliament of Zimbabwe* CCZ 04-23."

The applicants' case is premised on the contention that the first respondent breached his constitutional obligations by presiding over Cabinet deliberations and approving Constitutional Amendment Bill No. 3, which they allege is designed to undermine the protections contained in ss 88 and 328(7) of the Constitution. They argue that the first respondent was constitutionally obliged to refrain from participating in any executive process connected to a constitutional amendment that might allegedly benefit him.

The issue before the Court, however, is not whether the applicants consider the proposed amendment constitutionally objectionable. Nor is the Court called upon, at this stage, to determine the constitutional validity of the Bill itself. The question is whether the acts of chairing the Cabinet meeting and participating in Cabinet approval of the Bill constituted a failure by the President to fulfil obligations imposed by ss 90(1), 90(2)(b) and 196(2) of the Constitution. I shall deal separately with the obligations which the first respondent has allegedly failed to fulfil.

Sections 90(1) and 90(2)(b) of the Constitution

Section 90(1) stipulates that the President "must uphold, defend, obey and respect this Constitution as the supreme law of the nation and must ensure that this Constitution and all the other laws are faithfully observed". Section 90(2)(b), in turn, states that the President "must recognise and respect the ideals and values of the liberation struggle".

Although counsel for the applicants argues that these provisions impose enforceable constitutional obligations, the nature of the duties created by s 90 must be carefully examined within the framework of s 167(2)(d). It must be emphasised that not every constitutional duty is justiciable and enforceable under that provision. In this regard, a distinction must be drawn between broad constitutional responsibilities expressed in general terms and specific obligations susceptible to judicial determination and objective enforcement.

This distinction was recognised by this Court in *Fuza and Anor* v *The Parliament of Zimbabwe and Anor* CCZ 2-26, at para. 55, where the Court observed as follows:

> "It is my considered opinion that what s 141 creates goes beyond a mere duty cast on Parliament to involve the public in its legislative and other processes. It is an obligation deliberately inserted to open up the process of the respondent to the public. Accordingly, the Constitution grants exclusive jurisdiction to this Court to enforce the obligation. I make this observation because there is a subtle difference between a duty, which may or may not be justiciable, and obligations imposed on the President and on

> Parliament by the Constitution, which by virtue of s 167(2)(d) of the Constitution are not only justiciable but are mandatory."

Thus, the distinction is important. Section 167(2)(d) is not concerned with every broad constitutional aspiration or generalised duty imposed upon the President. It concerns obligations that are sufficiently specific, identifiable and judicially ascertainable to permit objective adjudication by a court of law.

Comparable reasoning has been adopted by the South African Constitutional Court. In *Doctors for Life International* v *Speaker of the National Assembly & Ors* 2006 (6) SA 416 (CC), at 435 A–D, the court drew a distinction between constitutional obligations that are "readily ascertainable" and those that require political or institutional judgment:

> "It seems to me therefore that a distinction should be drawn between constitutional provisions that impose obligations that are readily ascertainable and are unlikely to give rise to disputes, on the one hand, and those provisions which impose the primary obligation on Parliament to determine what is required of it, on the other. In the case of the former, a determination whether those obligations have been fulfilled does not call upon a court to pronounce upon a sensitive aspect of the separation of powers. An example of such a provision that comes to mind is a provision that requires statutes to be passed by a specified majority. The criteria set out are clear, and a failure to comply with them would lead to invalidity."

Thus, as a general rule, it is only obligations that are capable of objective determination without undue intrusion into the separation of powers that are readily enforceable by the courts. The same principle applies in the interpretation and application of s 167(2)(d) of our Constitution. Constitutional obligations relied upon under this provision must be identifiable with reasonable precision and amenable to objective judicial enforcement.

Viewed in this context, it seems to me that the obligations contained in ss 90(1) and 90 (2)(b) are framed in broad and hortatory rather than normative or compulsory language. Section 90(1) sets out the overarching constitutional responsibilities of the President in relation to constitutional fidelity and governance in general terms. Section 90(2)(b), in similar vein, invokes the ideals and values of the liberation struggle that are inherently political and moral

in character. Such provisions engender constitutional guidance and general standards of conduct. They do not readily translate into specific and objectively ascertainable obligations capable of enforcement under s 167(2)(d) within the factual conspectus of the present matter.

In marked contrast, in *Von Abo* v *Government of the Republic of South Africa* 2009 (2) SA 526 (T), quoted with approval in *Mujuru* v *The President & Ors* 2018 (1) ZLR 93 (CC), at 101G-102A, the court explained what an obligation entails in the following manner:

> "In *Doctors for Life*, NGCOBO J, writing for the court, observed that the word 'obligation' connotes a duty specifically imposed by the Constitution on Parliament to perform specified conduct. It seems to me that by parity of reasoning the same consideration applies to an 'obligation' relating to the President.
>
> The Constitution carefully apportions powers, duties and obligations to organs of State and its functionaries. It imposed a duty on all who exercise public powers to be responsible and accountable and to act in accordance with the law. This implies that a claimant who seeks to vindicate a constitutional right by impugning the conduct of a State functionary, must identify the functionary and its impugned conduct with reasonable precision."

The above remarks support the principle that an obligation must be clearly identifiable in the Constitution, prescribe conduct that is objectively ascertainable and not require the Court to intrude impermissibly into political or policy terrain reserved for the executive or the legislature. On this basis, provisions such as s 90(1) and 90(2)(b), which are framed in broad, generalised and exhortative language and which require the President to "uphold", "respect" or "recognise" constitutional values, do not necessarily create justiciable obligations enforceable under s 167(2)(d). A constitutional obligation cannot be enforced under s 167(2)(d) where its content is uncertain, indeterminate or dependent upon subjective political interpretation.

Furthermore, the conduct complained of by the applicants, to wit, the first respondent's participation in Cabinet deliberations concerning the proposed constitutional amendment, falls squarely within the constitutional functions and remit of the executive. Section 105(1) of the Constitution establishes Cabinet as consisting of the President, Vice-Presidents and Ministers,

while s 105(2) expressly provides that the President chairs Cabinet meetings. In terms of s 110(3)(c), Cabinet is "responsible for …. preparing, initiating and implementing national legislation", while "national legislation" is defined in s 332 as including any Act of Parliament. This necessarily includes responsibility for the consideration and approval of legislative proposals, including constitutional amendments, and clearly negates the contention advanced on behalf of the applicants that Cabinet itself does not have the authority to initiate constitutional Bills.

It follows that the first respondent's participation in the deliberations and approval of the Bill *in casu* was not incidental or discretionary but an exercise of functions expressly assigned to him by the Constitution itself. In effect, the applicants seek to characterise the President's performance of a constitutionally mandated function as a constitutional violation merely because they object to the subject matter under consideration. That proposition cannot be sustained under close scrutiny.

In impugning the first respondent's chairing of the Cabinet meeting which resulted in the Bill, the applicants contend that the first respondent ought to have formed a view as to whether his conduct at the time was constitutional. They assert that he ought to have known that the Bill was unconstitutional and therefore refused to chair the meeting. This line of argument is flawed for two reasons. First and foremost, there is no obligation on the first respondent to determine, in advance, the constitutionality of proposed legislative or constitutional amendments. That responsibility lies squarely with the courts exercising constitutional jurisdiction. This was stressed in the *Mujuru* case, *supra*, at 102E:

> "In the result, therefore, the conclusion is irresistible that unless the Constitution makes specific provision to the contrary, neither the President nor Parliament can be expected to undertake an inquiry to determine which law is constitutional and which is not. That is clearly the role of the courts. …. In this situation there can be no talk of a failure to fulfil a constitutional obligation."

The applicants' argument effectively requires the first respondent to pre-judge the constitutional validity of draft legislation before Cabinet or Parliament has completed the legislative process. This is patently contrary to what the Constitution actually prescribes.

The second basis on which the applicants' contention cannot succeed is that they have not identified any constitutional provision prohibiting the President from participating in Cabinet discussions relating to proposed constitutional amendments. The mere fact that a proposed constitutional amendment might benefit the President cannot, without more, render his participation in that process unconstitutional. Even if one accepts the highly persuasive proposition that he has a moral duty to recuse himself from the process, that in itself does not translate to a legal or constitutional obligation to do so. If it were otherwise, every proposed amendment contested on constitutional grounds would expose executive actors to allegations of constitutional delinquency simply for participating in constitutionally authorised processes.

To accept the applicants' argument would require the Court to infer, from the broad language of s 90, a specific constitutional prohibition against the President participating in executive deliberations whenever a proposed constitutional amendment might arguably affect him politically or institutionally. Such an expansive interpretation would operate to extend the scope of s 167(2)(d) beyond its intended purview.

In the event, the Court is unable to conclude that the applicants have established the existence of a specific, identifiable and justiciable constitutional obligation under ss 90(1) and 90(2)(b) which the first respondent has failed to fulfil by chairing the Cabinet meeting in question. The applicants have thus failed to satisfy the requirements for relief under s 167(2)(d) specifically with reference to those provisions.

Section 196(2) of the Constitution

Section 196(2) of the Constitution provides that "Public officers must conduct themselves, in public and private life, so as to avoid any conflict between their personal interests and their public or official duties, and to abstain from any conduct that demeans their office."

The applicants contend that the first respondent breached this provision by chairing the Cabinet meeting at which the impugned Bill was deliberated and approved. They argue that the Bill proposes an extension of the presidential term of office from five years to seven years, thereby placing the first respondent in a position where he stands to benefit personally from the proposed amendment. According to the applicants, this created a conflict between the first respondent's personal interests and his constitutional duties, with the result that he ought to have recused himself from the Cabinet deliberations.

The starting point in dealing with s 196(2) is whether it creates the kind of specific constitutional obligation contemplated by s 167(2)(d) of the Constitution. In the Court's view, it does not. Section 196(2) falls within the broader constitutional framework governing principles of public administration and ethical conduct by public officers generally. The provision is framed in broad and general terms and applies collectively to "all public officers". It does not identify the President specifically, nor does it impose upon him a distinct constitutional obligation separable from that imposed on other public officials.

This distinction is significant in proceedings brought under s 167(2)(d). As already observed, the jurisdiction conferred by this provision, as elaborated in the cited authorities, is limited to alleged failures by the President or Parliament to fulfil obligations specifically imposed upon them by the Constitution See, *inter alia*, the *Economic Freedom Fighters* case, *supra*.

A similar approach was adopted in *Women's Legal Centre Trust* v *President of the Republic of South Africa and Others* 2009 (6) SA 94 (CC). When considering the requirements for proceedings brought under s 167(4)(e) of the Constitution of South Africa, 1996, which is the equivalent of s 167(2)(d) of our Constitution, the court held, at paras. 16 and 20, as follows:

> "[16] Section 167(4)(e) itself contains a significant pointer: its agent-specific focus. The provision mentions 'Parliament' and 'the President', and them alone. This court has recently observed that the constitutional duties in the provision are 'pointedly reserved' for the actors in question. The wording suggests that the exclusive jurisdiction relates to obligations resting on these agents only, in contradistinction to constitutional duties they may bear together with other agents "

> "[20] s 167(4)(e) is precise in delineating the actors on whom it imposes obligations. They are the President and Parliament. 'The State' is not included. Constitutional duties the State and its organs must perform collaboratively or jointly do not fall within its purview. The provision envisages only constitutional obligations imposed specifically and exclusively on the President or Parliament, and on them alone. It does not embrace the President when he or she acts as part of the national executive, nor Parliament when it is required to act not alone but as part of other constituent elements of the State "

By parity of reasoning, s 196(2), which applies generally to all public officers, cannot readily be construed as creating a distinct and justiciable constitutional obligation enforceable against the first respondent under s 167(2)(d). The provision lacks the degree of specificity contemplated in the authorities discussed above.

In any event, even if s 196(2) were assumed to impose an enforceable constitutional obligation upon the first respondent, the applicants have not established facts demonstrating a conflict between the first respondent's personal interests and his official duties. The allegation that the first respondent stood to benefit personally from the proposed amendment remains speculative. No evidence was placed before the Court showing that the first respondent intends to derive any personal benefit from the Bill or that he advocated such benefit during the course of Cabinet deliberations. Indeed, neither the applicants nor the Court are aware of the views expressed by the first respondent during the Cabinet meeting in question. In those

circumstances, it cannot be concluded with any certainty that he acted in pursuit of personal gain or in conflict with his constitutional responsibilities.

Furthermore, the applicants' contention that the first respondent ought to have recused himself from the Cabinet meeting is impractical when considered in the context of collective Cabinet responsibility. As was observed in *Mupungu* v *Minister of Justice & Ors* 2021 (2) ZLR 113 (CC) at 122C, constitutional governance often requires participation by office bearers who may, in a broad political sense, be affected by proposed legislation. In the present matter, acceptance of the applicants' argument would logically require the recusal not only of the first respondent but potentially of all Cabinet members involved in the formulation and approval of the Bill. Such an approach would undoubtedly undermine the practical functioning of Cabinet and the constitutional responsibilities assigned to it under ss 105 and 110 of the Constitution. It is, therefore, not possible to conclude that the first respondent failed to fulfil any constitutional obligation under s 196(2) by chairing the Cabinet meeting in question.

Disposition

While the applicants have established the first respondent as the functionary whose conduct is being impugned, they have fallen short of the critical requirement to establish any precise or specific obligation imposed upon the first respondent that he has failed to fulfil. Neither have they pleaded the exact conduct based on which an application in terms of s 167(2)(d) of the Constitution can be brought against the first respondent. In the particular circumstances of the case pleaded by the applicants, the injunctions embodied in ss 90(1), 90(2)(b) and 196(2) of the Constitution lack the requisite specificity to trigger the jurisdictional competence of this Court under s 167(2)(b). It follows that the application is improperly before us and must therefore fail.

Accordingly, the following order is made:

1. The application be and is hereby struck off the roll.
2. There shall be no order as to costs.

GWAUNZA CJ **:** I agree.

GARWE DCJ **:** I agree.

MAKARAU JCC **:** I agree.

GOWORA JCC **:** I agree.

HLATSHWAYO JCC **:** I agree.

GUVAVA AJCC **:** I agree.

Lovemore Madhuku Lawyers, applicants' legal practitioners
The Attorney General's Office, respondents' legal practitioners